

25NNCV07984 25NNCV07984

County: los-angeles

Division: Civil Law and Motion

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Motion: DEFENDANTS' DEMURRER TO FIRST AMENDED COMPLAINT

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Case Number: 25NNCV07984 Hearing Date: August 6, 2026 Dept: 3

SUPERIOR COURT OF THE STATE OF
CALIFORNIA

FOR THE COUNTY OF LOS ANGELES - NORTHEAST
DISTRICT

RAYMUNDO ALEJANDRO MACIEL,

Plaintiff(s),

vs.

ELIZABETH

A. GUENTHARD, et al.,

Defendant(s).

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CASE NO.: 25NNCV07984

[TENTATIVE]

ORDER RE: DEFENDANTS' DEMURRER TO FIRST AMENDED COMPLAINT

Dept.

3

8:30

a.m.

August

6, 2026

I. INTRODUCTION

On November

6, 2025, plaintiff Raymundo Alejandro Maciel ("Plaintiff") filed this action against defendants Gregg A. Guenthard and Elizabeth A. Guenthard (collectively, "Defendants"). Plaintiff filed the operative First Amended Complaint on June 10, 2026, which asserts two causes of action: (1) negligence and (2) negligent security. Plaintiff alleges that Defendants were negligent in renting their home to their son, Ryan Sterling Guenthard ("Guenthard"), who physically attacked Plaintiff on May 3, 2025.

Defendants

filed this demurrer on July 9, 2026, on the ground that Plaintiff fails to allege sufficient facts to impose a duty of care.

Plaintiff

filed an opposition brief on July 24, 2026.

Defendants

filed a reply brief on July 30, 2026.

II. LEGAL STANDARD

A demurrer may be brought if insufficient facts are stated to support the cause of action asserted. (Code Civ. Proc., § 430.10, subd. (e).) A demurrer tests the legal sufficiency of the pleadings and will be sustained only where the pleading is defective on its face. (*City of Atascadero v. Merrill Lynch, Pierce, Fenner & Smith, Inc.* (1998) 68 Cal.App.4th 445, 459.) “We treat the demurrer as admitting all material facts properly pleaded but not contentions, deductions or conclusions of fact or law. We accept the factual allegations of the complaint as true and also consider matters which may be judicially noticed. [Citation.]” (*Mitchell v. California Department of Public Health* (2016) 1 Cal.App.5th 1000, 1007; *Del E. Webb Corp. v. Structural Materials Co.* (1981) 123 Cal.App.3d 593, 604 [“the facts alleged in the pleading are deemed to be true, however improbable they may be”].) Allegations are to be liberally construed. (Code Civ. Proc., § 452.) In construing the allegations, the court is to give effect to specific factual allegations that may modify or limit inconsistent general or conclusory allegations. (*Financial Corporation of America v. Wilburn* (1987) 189 Cal.App.3d 764, 769.)

III. DISCUSSION

“[A] person has no legal duty to protect others from a third party’s conduct. [Citations.] Liability for breach of this duty would rest upon that person’s failure to take action to protect the plaintiff; as a result, any duty would be grounded in nonfeasance. [Citations.] [¶] This second, no-duty-to-protect rule is not without exception, although the exception pertinent to this case is a narrow one.... [A] legal duty not to engage in nonfeasance is actionable only if the person being sued (the defendant) (1) has a ‘special relationship’ with a specific individual, and (2) that special relationship gives rise to a legal duty of care running to the plaintiff (or, more broadly,

to the class of persons to which the plaintiff belongs).” (Shalghoun v. North Los Angeles County Regional Center, Inc. (2024) 99 Cal.App.5th 929, 944-945.)

In *Brown v. USA Taekwondo* (2021)

11 Cal.5th 204, the California Supreme Court in *Brown* held that in order to determine whether a duty to protect against the conduct of a third party, the court must first determine whether there exists a “special relationship” between the parties or some other set of circumstances giving rise to an affirmative duty to protect, such as a defendant’s own tortious conduct which creates or increases an unreasonable risk of harm. (*Id.*, p. 209.) If no special relationship or misfeasance exists, no duty can exist; but even if a special relationship were found, the factors set forth in *Rowland v. Christian* (1968) 69 Cal.2d 108 must be analyzed to determine whether an exception to that duty should be made. (*Brown*, *supra*, 11 Cal.5th at p. 222.)

Plaintiff’s negligence claims require

him to allege that Defendants owed and breached a duty of care, causing him to sustain damages. (Defendants argue that Plaintiff fails to allege any facts establishing that they owed him a duty to protect him from a third party because Plaintiff only alleges they rented a house they owned to their son when their son committed an assault off property. (Demurrer, p. 10.) Defendants cite to several cases holding that parents do not assume liability for their adult children’s behavior simply by allowing them to live in their home. Defendants further emphasize that there are no factual allegations showing that a special relationship exists between them and Plaintiff and, even if there were, Plaintiff alleges he was standing on nearby public property when he was attacked, and Defendants’ duty to protect did not extend beyond the boundaries of their private property. (Demurrer, p. 11.)

Defendants also argue that Plaintiff

cannot allege that they have a duty to control their son’s conduct because there is no ability to control their adult son. (Demurrer, p. 12 [citing *K.G. v. S.B.* (2020) 46 Cal.App.5th 625, 633.]) In *Sproul v. Vallee* (2025) 116 Cal.App.4th 285, the court of appeal affirmed the trial court’s sustention of a defendant’s demurrer and held that a complaint did not show that a defendant had a duty to control her husband’s behavior or warn neighbors about her husband’s violent propensities. The *Sproul* court discussed many cases finding no special relationship “entailing an ability to control – and

the resulting duty to do so – in other family relationships” and concluded that policy considerations regarding marriage did not support imposing a duty to warn one’s neighbors of a spouse’s violent tendencies.

Here too, there are no allegations

showing that Defendants could control their son, thereby creating a special relationship. And even if there were, imposing a duty based on that special relationship would undermine public policy in preserving family relationships while doing little to prevent future harm. (Smith v. Freund (2011) 192 Cal.App.4th 466, 475 [“To impose a duty of care on defendants could cause greater harm in future cases by encouraging parents to disassociate from their adult children with chronic serious problems”].)

In

opposition, Plaintiff argues that Defendants’ cited cases are unavailing because they do not involve “actual knowledge of prior crimes” committed by their family member whereas here, in contrast, Plaintiff alleges that Defendants knew of their son’s criminal history. (Opp., p. 3.) However, Plaintiff fails to cite any case law contradicting the two-step framework set forth in Brown and does not address the existence of any special relationship between Defendants and their son, or between Defendants and Plaintiff, which would give rise to a duty to protect him from Guenthard.

Plaintiff also argues that leave to

amend should be granted so that he can add further factual details regarding the nature and extent of Defendants’ knowledge of their son’s history and specify the specific precautionary measures Defendants failed to undertake. (Opp., p. 5.) However, adding these allegations would not show that Defendants owed Plaintiff a duty to warn him of their son’s behavior. (See Sproul, supra, 116 Cal.App.5th at p. 302 [denying leave to amend where proposed allegations of past conduct and financial support insufficient to impose duty on wife].) Accordingly, the demurrer is SUSTAINED without leave to amend.

IV. CONCLUSION

Defendant’s demurrer to the FAC is
SUSTAINED without leave to amend.

Moving party to give notice.

Dated
this 6th
day of August
2026

William A. Crowfoot

Judge of the Superior Court

Parties who intend to submit on this tentative must send an email to the Court at indicating intention to submit on the tentative as directed by the instructions provided on the court website at www.lacourt.org. Please be advised that if you submit on the tentative and elect not to appear at the hearing, the opposing party may nevertheless appear at the hearing and argue the matter. Unless you receive a submission from all other parties in the matter, you should assume that others might appear at the hearing to argue. If the Court does not receive emails from the parties indicating submission on this tentative ruling and there are no appearances at the hearing, the Court may, at its discretion, adopt the tentative as the final order or place the motion off calendar.